

		The court recognizes this is not a motion to amend the judgment to add an alter ego in the traditional sense, but rather a motion to amend under the foregoing Labor Code provisions. Nonetheless, Domaoal has not presented any authority to show the same due process requirements do not apply here. Indeed, Domaoal has not shown the court may add a nonparty as a judgment debtor without the nonparty being served in a sufficient manner to confer jurisdiction over the nonparty. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. Domaoal's counsel is ordered to give notice of this motion.
12.	<i>Santos vs. Crenshaw Manufacturing Inc.</i> 2025-01488879-	Before the court is the motion of judgment creditor Marivel Santos (Santos) to amend judgment pursuant to Code of Civil Procedure section 187. As more fully set forth below the motion is DENIED WITHOUT PREJUDICE. On July 14, 2023, Santos obtained an award from the Workers' Compensation Appeals Board of the State of California against judgment debtor Crenshaw Manufacturing Inc. (Crenshaw) in the amount of \$194,356.55 arising out of an injury Santos sustained while working for Crenshaw. On June 3, 2025, Santos filed these proceedings and obtained a judgment against Crenshaw based on the Appeal Board award. By this motion, Santos seeks to amend that judgment to add nonparty Waleed Mansour (Mansour) as a judgment debtor on the ground Mansour is an alter ego of Crenshaw. Code of Civil Procedure section 187 provides, "When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code. "The authority provided to courts by section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor." (<i>Butler America, LLC v. Aviation Assurance Co., LLC</i> (2020) 55 Cal.App.5th 136, 145.) "Amending a judgment to add an alter ego of an original judgment debtor "is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant."""

		(<i>Angel Lynn Realty, Inc. v. George</i> (2025) 114 Cal.App.5th 655, 663 (<i>Angel Lynn Realty</i>).) Based on due process concerns, however, a default judgment may not be amended to add a nonparty alter ego. (See <i>Motores de Mexicali, S.A. v. Superior Court</i> (1958) 51 Cal.2d 172, 175-176; <i>Wolf Metals Inc. v. Rand Pac. Sales, Inc.</i> (2016) 4 Cal.App.5th 698, 703-704, 708-709; <i>NEC Electronics, Inc. v. Hurt</i> (1989) 208 Cal.App.3d 772, 779.) “““Usually, a disregard of the corporate entity is sought in order to fasten liability upon individual stockholders. . . .””” (<i>Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.</i> (2013) 217 Cal.App.4th 1096, 1107 (<i>Toho-Towa</i>).) “In California, common principles apply regardless of whether the alleged alter ego is based on piercing the corporate veil to attach liability to a shareholder or to hold a corporation liable as part of a single enterprise. In both cases, ‘[t]he law as to whether courts will pierce the corporate veil is easy to state but difficult to apply.’ [Citation.] Because it is founded on equitable principles, application of the alter ego ‘is not made to depend upon prior decisions involving factual situations which appear to be similar. . . . “It is the general rule that the conditions under which a corporate entity may be disregarded vary according to the circumstances of each case.” [Citations.] Whether the evidence has established that the corporate veil should be ignored is primarily a question of fact which should not be disturbed when supported by substantial evidence. [Citations.]” (<i>Toho-Towa, supra</i>, 217 Cal.App.4th at p. 1108.) To prevail on a motion to amend a judgment to add a nonparty, “the judgment creditor must show, by a preponderance of the evidence, that “(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone.”” What constitutes sufficient control depends on the facts of each individual case. For example, Control was shown where the nonparty alter ego hired counsel to represent the corporation, was the person with whom the corporate defendant’s counsel primarily dealt, was kept fully informed of the suit’s progress, was familiar with all the issues, and helped draft documents for the litigation. (<i>Alexander v.</i>
--	--	---

		<i>Abbey of the Chimes</i> (1980) 104 Cal.App.3d 39, 46.) But control was not shown where sole owner hired and discharged corporation's attorneys, appeared at settlement conferences and financed the litigation, but was not named individually, knew the corporation was on the verge of dissolution, and had no personal duty to defend the underlying action. (<i>Katzir's Floor & Home Design, Inc. v. M-MLS.com</i> (9th Cir. 2004) 394 F.3d 1143, 1149-1150.) In determining whether there is a sufficient unity of interest the many factors the courts consider include "one individual's ownership of all stock in a corporation; use of the same office or business location; commingling of funds and other assets of the individual and the corporation; an individual holding out that he is personally liable for debts of the corporation; identical directors and officers; failure to maintain minutes or adequate corporate records; disregard of corporate formalities; absence of corporate assets and inadequate capitalization; and the use of a corporation as a mere shell, instrumentality or conduit for the business of an individual." [Citation.] Other recognized factors include "the use of the corporate entity to procure labor, services or merchandise for another person or entity" and "the diversion of assets from a corporation by or to a stockholder or other person or entity, to the detriment of creditors." [Citation.]" (<i>JPV I L.P. v. Koetting</i> (2023) 88 Cal.App.5th 172, 194-195.) "Critically, "[n]o single factor is determinative, and instead a court must examine all the circumstances to determine whether to apply the doctrine." [Citation.] "There is no litmus test to determine when the corporate veil will be pierced; rather the result will depend on the circumstances of each particular case." [Citation.]" (<i>Id.</i> at p. 195.) An inequitable result is shown as a matter of law where the judgment debtor is insolvent due to the actions of an alter ego. (<i>Relentless Air Racing, LLC v. Airborne Turbine Ltd. Partnership</i> (2013) 222 Cal.App.4th 811, 816.) ""Application of the alter ego doctrine does not depend upon pleading or proof of fraud." [Citations.] It is enough that "adherence to the fiction of the separate existence of the corporation would promote injustice or bring about inequitable results." [Citation.]" (<i>Angel Lynn Realty, supra</i>, 114 Cal.App.5th at p. 1109, fn. 5.) "Difficulty in enforcing a judgment or collecting a debt does not satisfy" the inequitable result element. (<i>Sonora Diamond Corp. v. Superior Court</i> (2000) 83 Cal.App.4th 523, 539.) "The alter ego doctrine does not guard every unsatisfied creditor of a corporation but instead affords
--	--	--

		protection where some conduct amounting to bad faith makes it inequitable for the corporate owner to hide behind the corporate form.” (<i>Ibid.</i>) “Alter ego ‘is an extreme remedy, sparingly used.’ [Citation.] “The standards for the application of alter ego principles are high, and the imposition of [alter ego] liability . . . is to be exercised reluctantly and cautiously.” [Citation.] Still, “[t]he greatest liberality is to be encouraged” in allowing judgments to be amended to add the ‘real defendant,’ or alter ego of the original judgment debtor, “in order to see that justice is done.” [Citations.]” (<i>Highland Springs Conference Training Center v. City of Banning</i> (2016) 244 Cal.App.4th 267, 281.) Here, Santos has failed to present sufficient evidence to meet her burden by a preponderance of the evidence. As stated above, Santos must establish three elements to meet that burden. The failure on any one of the elements requires the motion to be denied. Santos’s evidence is highly conclusory and some of it is inadmissible. The motion’s most glaring shortcomings is on the unity of interest element, especially when viewed in light of the evidence Mansour presents in opposition. Santos argues this element is met because Mansour owned and controlled Crenshaw, but the court finds more is needed to meet this element. For example, there is no showing regarding the capitalization, adherence to corporate formalities, commingling of asset, or any of the other factors identified above. Not all of these factors are required and no single factor is essential, but something more than ownership and control is needed. If not, every sole shareholder who runs a corporation would be an alter ego. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. Any future motion must provide a much more detailed factual showing on each of the three required elements. Santos also should more fully address the argument the decision in this case was the equivalent of a default judgment, which would prevent the amendment of the judgment. As for Mansour’s evidentiary objections, they are SUSTAINED as to objection nos. 1, 3, 4, 5, and 6 and OVERRULED as to all others. Santos’s counsel is ordered to give notice of this ruling.
--	--	--

13.	<i>Seton Hall University vs. Spitz</i> 2026-01555640	Before the court are following applications and petition filed on behalf of petitioner Seton Hall University (Petitioner): (1) verified application of Thomas P. Scrivo to appear as counsel pro hac vice on behalf of Petitioner; (2) verified application of Michael J. Dee to appear as counsel pro hac vice on behalf of Petitioner; and (3) petition to enforce deposition subpoena for personal appearance and production of documents, electronically stored information, and things in action pending outside California pursuant to California Code of Civil Procedure section 2029.600. <u>Motion Nos. 1 & 2: Pro Hac Vice Applications</u> The applications Petitioner submitted on behalf of Messrs. Scrivo and Dee comply with the requires for California Rules of Court, rule 9.40 and do not disclose any basis for denying the applications. Accordingly, both applications are GRANTED and Messrs. Scrivo and Dee are hereby admitted pro hac vice in this case to appear on Petitioner's behalf. Petitioner is ordered to give notice of these rulings. <u>Motion No. 3: Petitioner to Enforce Deposition Subpoena</u> By this petition, Petitioner seeks to compel nonparty Eric Spitz (Spitz) to appear for deposition and produce documents. On May 11, 2026, Spitz filed an ex parte application to continue the hearing on this petition to provide him with adequate time to retain counsel. On May 12, 2026, the court denied that application because Spitz failed to establish he had acted with reasonable diligence or any other ground for an ex parte continuance. On May 14, 2026, attorney William Lockyer filed a notice of appearance stating he had been retained to represent Spitz in these proceedings. Late in the day on May 26, 2026, the court learned attached to the back of the notice of appearance attorney Lockyer filed was a renewed ex parte application to continue the hearing on the petition. That renewed ex parte was never calendared or set for hearing because Spitz never took any of the steps necessary to have the application heard. For example, Spitz never separately filed the application, never provided a copy to the courtroom, never paid the filing fee, and never notified the courtroom until May 26, 2026. As such, the renewed ex parte application was never separately filed as a request for the court to consider and was never scheduled for a hearing or ruling.
-----	---	--